

TENTATIVE RULING

Erlinda Rodriguez
v.
Salinas Valley Health, et al.
26CV000420

Defendants' Motion to Consolidate

Hearing Date: September 18, 2026

Defendants Salinas Valley Health ("SVH") and Carla Spencer (collectively, "Defendants") move to consolidate, for all purposes, including trial, this case ("*Rodriguez*") with *Condolor v. SVH*, Case No. 26CV00423 ("*Condolor*"), and *Erguiza v. SVH*, Case No. 26CV000428 ("*Erguiza*"). Plaintiff Erlinda Rodriguez ("Plaintiff") opposes consolidation, arguing that Defendants seek "the most extreme form of consolidation the law allows, and Defendants have not carried their burden to justify it." [Opp. at 1.] After considering the papers supporting and opposing consolidation, Defendants' motion is **GRANTED**. Defendants have satisfied the procedural requirements for consolidation. [Cal. Rules of Ct., rule 3.350.] The three cases also share common legal and factual issues. [Code Civ. Proc. § 1048.] Consolidating these actions, with *Rodriguez* as the lead case, enhances efficiency and helps prevent conflicting rulings. [*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979.] The Court's ruling is **WITHOUT PREJUDICE** to later orders bifurcating damages for each plaintiff.

Legal Standard.

"When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." [Code Civ. Proc. § 1048, subd. (a).]

"A notice of motion to consolidate must: (A) [l]ist all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) [c]ontain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) [b]e filed in each case sought to be consolidated." [Cal. Rules of Court, rule 3.350, subd. (a)(1).] Further, "[t]he motion to consolidate: (A) [i]s deemed a single motion for the purposes of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; (B) [m]ust be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and (C) [m]ust have a proof of service filed as part of the motion." [*Id.* at subd. (a)(2).]

Discussion.

Procedurally, Defendants' motion satisfies the requirements of Rule 3.350, subdivision (a), of the California Rules of Court.

Substantively, Defendants have shown that the *Rodriguez*, *Condolor*, and *Erguiza* actions share the following:

1. **Identical Causes of Action:** Each case’s operative complaint lists the same nine causes of action: (i) Harassment in Violation of FEHA; (ii) Failure to Prevent Harassment in Violation of FEHA; (iii) Retaliation in Violation of FEHA; (iv) Negligent Training, Supervision & Retention; (v) Retaliation Labor Code 1102.5; (vi) Intentional Infliction of Emotional Distress; (vii) Negligent Infliction of Emotional Distress; (viii) Discrimination in Violation of Govt Code 12940; and (ix) Failure to Prevent Discrimination in Violation of FEHA. [*Rodriguez* Complaint at 1; *Condolor* Complaint at 1; *Erguiza* Complaint at 1.]
2. **Identical Defendants:** Defendants are named in all three cases. [*Ibid.*]
3. **Identical Events:** The three cases were brought by registered nurses of Filipino descent and stem from emails sent on December 25 and 26, 2024, that referred to them as the “Filipino mafia.” [*Rodriguez* Complaint at ¶ 12; *Condolor* Complaint at ¶ 12; *Erguiza* Complaint at ¶ 12.]
4. **Witnesses:** Each case’s operative complaint identifies the same overlapping core group of witnesses, including Ms. Spencer, Nallely Perez, Allen Radner, M.D., and Michelle Childs. [*Rodriguez* Complaint at ¶¶ 2, 11-12, 17-18; *Condolor* Complaint at ¶¶ 2, 11-12, 17-19; *Erguiza* Complaint at ¶¶ 2, 11-13, 19-20.]
5. **Overlapping Discovery and Expert Issues:** Defendants have shown that the individuals identified above are witnesses who “will testify.” [Spellberg Decl. at ¶ 7.] The actions may share the same expert witnesses, evidence, and discovery timelines. [Reply at 4-5.]

Therefore, Defendants have shown that the pleadings share common questions of law and fact.

Plaintiff’s arguments do not persuade the Court to deny consolidation.

First, Plaintiff opposes consolidation because she fears it will dilute her individual case and risk a verdict swayed by evidence involving the *Condolor* and *Erguiza* plaintiffs. [Opp., *passim*.] Although each plaintiff’s experiences of retaliation and subsequent events differ in detail, complete factual identity is not required for consolidation under Code of Civil Procedure section 1048. [See *Todd-Stenberg*, 48 Cal.App.4th at 979-980 (the court upheld consolidation because shared evidence predominated and juries could distinguish damages among the multiple plaintiffs).]

Second, *State Farm Mutual Automobile Ins. Co. v. Superior Court* (1956) 47 Cal.2d 428, is inapposite. That case involved prejudice arising from contradictory arguments a party would be forced to make due to insurance-coverage issues. [*Id.* at 431.] No comparable risk exists here. The need for the jury to distinguish between the three plaintiffs and their damages does not rise

to the level of substantial prejudice. [See *Todd-Stenberg*, 48 Cal.App.4th at 979-980.] To assuage Plaintiff's concerns about potential confusion, this Court's consolidation order is without prejudice to a party moving for an order to bifurcate the damage phases.

Third, the argument that informal coordination or limited consolidation for discovery would suffice is unpersuasive. Discovery is not the only area where judicial economy and consistency are at stake. Three separate trials would require repeated testimony from common witnesses, create a risk of inconsistent adjudications, and consume significant judicial resources.

Finally, Plaintiff's concerns about disruption from different departments or the already-set *Condolor* trial date (February 28, 2028) are minimal; no meaningful prejudice arises from recalibrating schedules.

Accordingly, the pleadings demonstrate substantial common questions of law and fact that predominate over individualized differences. The motion is **GRANTED**.

Conclusion.

The Court **GRANTS** complete consolidation of *Rodriguez*, *Condolor*, and *Erguiza* for all purposes because the actions involve common questions of law or fact. The ruling is without prejudice to a future motion to bifurcate damages for each plaintiff at trial to avoid potential jury confusion.

The Court orders that *Rodriguez* is designated as the lead case. [Cal. Rules of Ct., rule 3.350, subd. (b).] All future filings must be filed in *Rodriguez*, include the *Rodriguez* caption and case number, and list the case numbers of *Condolor* and *Erguiza*. [*Id.* at subd. (d).] All hearing dates in cases other than *Rodriguez* are vacated. This matter is set for a Further Case Management Conference on November 10, 2026, at 9 a.m. in Department 14.

Defendants shall prepare the Proposed Order consistent with this Tentative Ruling and give notice.

NOTE REGARDING TENTATIVE RULING

This tentative ruling becomes the Court's order, and no hearing shall be held unless a party contests. [Cal. Rules of Ct., rule 3.1308; Super. Ct. Monterey County, Local Rules, rule 7.9.] The party wishing to present oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT, AND THE HEARING WILL BE VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.